

THE PEOPLE'S BRIEFS

SEARCHES IN SCHOOLS



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What happens when the backpack on your shoulder suddenly becomes the center of a school investigation? This edition of *The People's Briefs: Searches in Schools* follows the story behind student searches, the Fourth Amendment, and *New Jersey v. T. L. O.* to explore where school safety ends and student privacy begins.



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THE INTRODUCTION

The sound of the bell roars in your ears as you leave two periods of biology behind. Everyone makes a beeline to the lunchroom, lockers slam, sneakers scrape against the floor, and someone is laughing way too loudly in the distance. It's a day like any other. You hear a teacher call out, "Hey, come here for a second." You assume it's just another classmate on their phone, just texting their mom. You keep walking until the voice gets closer again, and suddenly you are face-to-face with a red-faced administrator. They explain to you quickly, clearly, and annoyed that there's been a report. Something was found somewhere around your classroom where 20 other kids had also just left. Their eyes lock onto the backpack hanging on your shoulder, half open with papers stuffed inside. This backpack was as normal as it got, but still, they ask you,

"Can we take a look inside?"

You pause, of course, because all you wanted to do was get to lunch, make the line early so you wouldn't spend your time waiting instead of eating. But now you're stuck with an administrator who you swear is just here to make your Monday even worse. But in the end, maybe you have nothing to hide. Maybe you do. Maybe you have no clue what they are looking for. And as you're unzipping your bag, about to hand it over, assuming you don't really have a choice, you freeze. They asked to search you, but maybe another question comes before that.

Can they search you?

Believe it or not, this is more common than you might think, and at school, the answer isn't as simple as yes or no. Public-school students have constitutional rights, including protections against unreasonable searches and seizures under the Fourth Amendment. But schools also have a responsibility to maintain safety, order, and a learning environment for everyone. Because of that, the rules governing searches at school are not always the same as the rules that apply outside of school. So where do we draw the line? When can a school search for a student? What makes a search reasonable? How far can a school official go? And what happens when a search crosses the boundary between maintaining school safety and invading a student's privacy? To answer those questions, we have to look beyond the rules written on paper. We have to look at the students who found themselves at the center of the law and the court decisions that helped define what schools can, and cannot, do. This takes us to our August Edition of The People's Briefs: Searches In Schools.





THE BASICS



Let's start with the basics. What are searches? Under the 4th Amendment, a search is defined as when a government official, employee, or agent goes past a person's reasonable expectation of privacy. This means the boundaries and usual standards of what is personal to someone are violated. This doesn't mean it is automatically an illegal search. To put it simply, it's as if you met someone at a party, and while you were conversing, it seemed like they wanted to know way too much about your pet cat, Whiskers, like when he last got his shots and his exact meal schedule, and they don't even have a cat! Based on what you are comfortable with sharing with someone who is basically a complete stranger, you think this is kind of intrusive, so you tell them they are being way too nosy.

Legal searches are super important too. Even though in environments like school they can seem like a small moment, like a peek in a backpack, they can change the course of some students' lives. We all have things that we'd rather keep to ourselves, but privacy is not absolute. Legal searches of an individual matter because they protect someone's constitutional rights while allowing police to find evidence safely. You never know who might be hiding something dangerous, and searches allow the general public to stay safe. But nothing is perfect, especially when it comes to the law, which is why, even though searches are here to investigate those who may hurt us, if searches are handled improperly, they can cause more harm than good.

It's a game of balancing whether a person's rights outweigh the government's reason for searching, and the rules change when it comes to schools. A search in the school setting is defined as the investigation of a student's person or property when that student has a reasonable expectation of privacy that has to do with said item or themselves. If you wouldn't want your teacher to just look through your school bag because that's your stuff and you think it's a little invasive of them to do that, that is an expectation of privacy in school. A school search usually includes opening a locker, checking what's in a student's backpack, on their cell phone or personal electronic device, or requiring them to empty their pockets or undergo a pat-down.

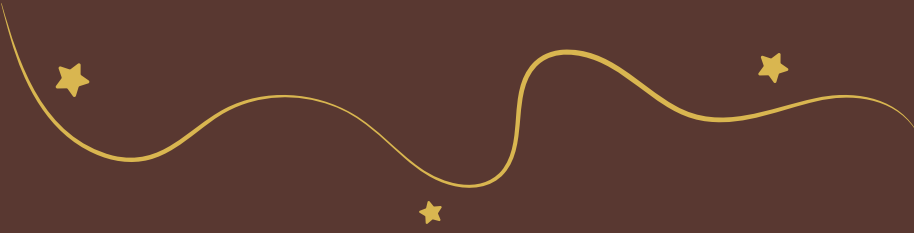
A student's expectation of privacy can be different when they use property owned and controlled by a school district. School districts may establish policies informing students that specific district-owned items like lockers, desks, or school-issued tech may be inspected and, depending on those policies, whether a student would have an expectation of privacy over a school-owned item. In these cases, where a student might not have an expectation of privacy over a school-owned item, whether it would be considered a search under the 4th Amendment isn't completely clear.

Searches happen at school to keep students and staff out of harm's way, stop violence or theft, and prevent illegal items like drugs or weapons from entering school. Schools also have a legal obligation to protect every person there, so rules for searches and conditions on whether or not searches can be performed are less strict than regular police rules. Schools are required to be in loco parentis, which means "in substitution of a parent." This legal doctrine binds schools to do everything they can to keep everyone there safe, and even though schools cannot prevent every possible danger, they are obligated to act and protect against foreseeable dangers, like a student having a dangerous or illegal item.

As we said before, the 4th Amendment regards searches and the protection of people when it comes to searches when the search is conducted by a government official, employee, or agent. So why do students still have protections under the 4th against unreasonable searches in schools? This is because public school staff are government actors, but rather than needing a warrant to search a student, they need reasonable suspicion. Because of a school's legal requirement to keep everyone safe, and as school staff are still considered government actors and are still held responsible for unreasonable searches, schools must balance students' rights and reasonable expectations of privacy through reasonable suspicion, which is why the protection against searches under the 4th Amendment is different for students in school than adults out of school.



DEFINITIONS

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- ✦ Individual Search: When a government official, employee, or agent goes past a person's reasonable expectation of privacy regarding their person or personal belongings.
 - ✦ Subjective expectation: A person must show they actually expected privacy regarding their person or personal belongings.
 - ✦ Objective expectation: Society must view such an expectation as fair, normal, and reasonable, especially depending on the situation.
 - ✦ Reasonable expectation of privacy: When subjective expectation and objective expectation are shown and agreed upon, someone's reasonable expectation of privacy is confirmed. When a search is conducted by a government official, employee, or agent, a person's 4th Amendment protections and rights come into play. Keep in mind, this reasonable expectation of privacy can simply be demonstrated by keeping something private and does not need to be explicitly announced. Reasonable expectations of privacy can also be shown or expressed at any time before, during, or right after a search.
 - ✦ Reasonable: An action, choice, or belief that is just, rational, and proper under the circumstances and environment of an event. It is not a term with an exact definition. It's a versatile term used by people who work under the law to test and decide how an ordinary, careful person should act in a specific situation.
 - ✦ Fourth Amendment: The Fourth Amendment protects people from unreasonable searches and seizures by the government. It generally requires police to have probable cause and a specific warrant before conducting a search, although there are exceptions to the warrant requirement.
 - ✦ Unreasonable: An action, choice, or belief that goes against common sense, is unfair, comes from a nonfactual basis, or falls below the standard of care expected from an ordinary person.
 - ✦ Reasonable suspicion: A condition that allows school staff and student policies to search a student when two other conditions exist. First, the search is justified at its beginning, meaning that there are reasonable conditions for suspecting that searching a student will reveal evidence that the student has violated or is violating the law or school rules and could cause foreseeable harm. Secondly, the search is reasonably related in scope to the circumstances that justified the search. This means that the way the search is conducted and what items are searched are reasonably related to the original objectives of the search. This also includes that the search cannot be excessively intrusive regarding the student's age and sex and the nature of the offense that they are being suspected of.
 - ✦ Random Search: A type of suspicionless search. These searches are not conducted out of individual suspicion but as a preventive measure since schools have the legal obligation to protect everyone there. The legality of a random search depends on whether the school has a proven problem, compelling interest, or special need that justifies the use of a search without suspicion and whether the random search has to do with the duty to protect its students and staff. A random search needs a special-needs exception. Based on the proven problem the school has, the school may choose a group of students, such as a grade or a team, to conduct a random search on, but the idea of a random search is that within the group that is chosen to have a random search, those who are searched are chosen completely at random. Consequences that arise after a random search also play a part in whether it was constitutional, such as treatment, support, criminal consequences, law enforcement, or punishments.
 - ✦ Probable cause: This requires police to have reasonable grounds, based on facts and circumstances, to believe that a crime has been committed, that a specific person committed it, or that evidence of a crime is present before making an arrest or conducting a search.
 - ✦ Suspicionless search: Just like a random search, a suspicionless search can apply to a specific, defined group as long as there is a problem identified (special-needs exception) in the school that needs to be addressed. The main and most important difference is that groups aren't being selected because officials individually suspect them of wrongdoing. Consequences don't change if it's suspicionless; what matters is if, before the search, they had no suspicion of an individual's wrongdoing. A common example of a suspicionless search can be metal detectors.

DEFINITIONS

- ★ **Scope:** The search must match the grade of the rule broken, and an overly invasive search cannot be conducted if the original rule that was suspected to be broken was minor. The items and kind of search must remain strictly tied to the original suspicion.
- ★ **The “Special Needs” Exception:** Courts allow random or suspicionless searches (such as drug testing for athletes or specific programmatic sweeps) only when the school demonstrates a compelling, concrete interest or documented crisis, like a severe, pervasive drug or weapon problem that ordinary measures cannot solve.
- ★ **The Exclusionary Rule:** This is a legal principle that stops the government from using evidence gathered in an illegal way against a defendant in a criminal trial. It is mainly used to protect rights under the Fourth Amendment, which bans unreasonable searches and seizures.
- ★ **Appeal:** A formal request to a higher court to review, modify, or reverse a decision made by a lower court. It is a process to correct legal errors, not to retry the case from scratch. No new evidence, witnesses, etc., can be brought in.
- ★ **Parental immunity:** A legal doctrine that, in some circumstances and depending on the jurisdiction, can limit or prevent a child from bringing certain civil claims against their parent. The doctrine has exceptions and varies by state and type of claim.
- ★ **Certiorari:** A formal request for a higher court, especially the U.S. Supreme Court, to review a decision made by a lower court. When the Supreme Court grants certiorari, it agrees to hear the case. The Court generally has discretion over which cases it reviews.
- ★ **Court holding:** The court’s legal conclusion or rule that directly resolves the issue presented in a case. The holding explains what the court decided and the legal principle supporting that decision.





EXPECTATION OF PRIVACY



In terms of the student being searched, a big part of the 4th Amendment is reasonable expectation of privacy. When subjective expectation and objective expectation are shown and agreed upon, someone's reasonable expectation of privacy is confirmed, and when a search is conducted by a government official, employee, or agent, a person's 4th Amendment protections and rights come into play. Subjective expectation means a person must show they actually expected privacy regarding their person or personal belongings. Keep in mind, this reasonable expectation of privacy can simply be demonstrated by keeping something private and does not need to be explicitly announced. Objective expectation means society must view such an expectation as fair, normal, and reasonable, especially depending on the situation. Reasonable expectations of privacy can also be shown or expressed at any time before, during, or right after a search.

There are some extras to these rules, like everything when it comes to the law. Ownership can support an expectation of privacy, but it does not automatically create one, just as not owning something does not automatically eliminate one. For example, imagine a student keeping a personal journal. The journal belongs to them, they keep it closed, and they do not generally allow other people to read it. They would likely have a strong personal expectation that its contents remain private. But a reasonable expectation of privacy does not mean that the journal can never be searched. A staff member within a school may still be legally permitted to search something in which a person has a privacy interest if reasonable suspicion is fulfilled. The existence of a privacy interest and the legality of a search are two separate questions.

Privacy also does not necessarily disappear simply because something has been shared with another person, as a lot of people might think. Someone might tell a close friend something personal without intending for that information to become public. For example, a student might allow their two closest friends to read a few pages of their journal while still reasonably expecting the rest of the journal to remain private. Sharing something with a limited group of trusted people is not automatically the same as making it public. But voluntarily sharing information can affect the strength of the person's reasonable expectation of privacy depending on what was shared, with whom, and under what circumstances. Sharing information with school staff can raise additional questions. This is because school staff are considered government actors when it comes to the 4th Amendment, so voluntarily giving that person access to something may hinder the strength of the student's reasonable expectation of privacy. Though it does not necessarily mean they have unlimited permission to examine everything connected to it. For example, if a student voluntarily shows a teacher one page of a journal, that does not automatically mean the teacher has permission to read every other page.

Keep in mind, the more public something that a student considers to be their reasonable expectation of privacy, the more the item can be searched since the protection of the 4th Amendment weakens with a weaker reasonable expectation of privacy. But since it is a school setting, it honestly sometimes doesn't matter how strong a student's reasonable expectation of privacy may be; they can still be searched if there is reasonable suspicion. All a stronger reasonable expectation of privacy can do is determine how appropriate or invasive a search was and how much the 4th Amendment is able to protect a student from an unreasonable search. Ultimately, a reasonable expectation of privacy is not an absolute shield against searches, but it can be a determining factor in whether a search was unreasonable or not.



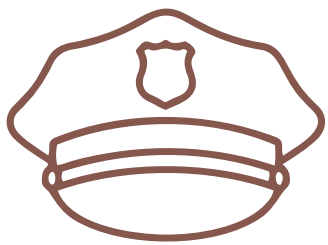
REASONABLE SUSPENSION

Reasonable suspicion is a legal standard that allows a government official, which we are classifying as school staff and school police, to take action on a suspicion that has been created based on facts and circumstances that create a reasonable basis to suspect that an individual(s) has committed a wrongdoing. (Or, in the case of random searches or suspicionless searches, any special condition or status that makes it appropriate to conduct those searches.) For example, things that can contribute to reasonable suspicion include physical indicators, visible clear items, direct reports, etc.

The two standards that a suspicion needs to fit to be a sufficient, feasible suspicion to search a student are: first, the search is justified at its beginning, meaning that there are reasonable conditions for suspecting that searching a student will reveal evidence that the student has violated or is violating the law or school rules and could cause foreseeable harm.

Secondly, the search is reasonably related in scope to the circumstances that justified the search. This means that the way the search is conducted and what items are searched are reasonably related to the original objectives of the search. This also includes that the search cannot be excessively intrusive regarding the student's age and sex and the nature of the offense that they are being suspected of.





WHO CONDUCTS A SEARCH



Who conducts a search can make an important difference in determining which constitutional standards apply. Public-school teachers, administrators, and other school officials are government actors; they do not follow the same search process as separate law enforcement. A public-school official generally does not need a warrant or probable cause to search a student. Instead, the search ordinarily must be justified by reasonable suspicion.

However, the situation can become more complicated when law enforcement becomes involved. A school resource officer, security officer, or other person working at a school may sometimes perform school-related functions and be considered more of a government actor, and in other cases, they act in a law-enforcement capacity. The person's title or physical presence at the school does not, by itself, answer which constitutional standard applies. What matters can include who employs the person, what role they are performing, who directed the search, and whether they are acting independently or in cooperation with law enforcement.

Outside police officers are different from ordinary school officials because they exercise traditional law-enforcement authority. Their searches are generally governed by the Fourth Amendment rules applicable to law enforcement, although the exact requirement depends on the particular search and whether an exception to the warrant requirement applies. Police usually need probable cause, but a school's reasonable-suspicion standard might be used in certain cases.

For example, if a teacher lawfully searches a student's belongings based on reasonable suspicion and discovers prohibited material, that discovery may provide important information to police. However, it does not automatically give police unlimited authority to conduct a second search. Any subsequent law-enforcement search must be evaluated under the constitutional rules applicable to that search and the circumstances surrounding it.



WHAT CAN BE SEARCHED

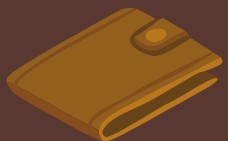


In terms of what can be searched, items can generally be thought of in two broad categories: either school- or district-owned property and property belonging to the student and the student themselves. But these categories are far from black and white; there's a lot of gray area. Ownership doesn't automatically change the ability for something to be searched, nor does it automatically determine whether a student has a reasonable expectation of privacy that will be taken into consideration when it comes to school-owned property. The law can depend on the type of property, the student's use of it, school policies, state law, and the circumstances surrounding the search.

Lockers and desks are complex areas because they are usually property owned by the school that students can use. A student's reasonable expectation of privacy depends on specific school or district policies, state law, and how the property is controlled and used, which is why it's important to know policies regarding your own school district. If a school district clearly informs students that its lockers or desks are school property and may be inspected, that notice can significantly affect the student's reasonable expectation of privacy in the locker or desk itself, since the desk or locker can be school property. However, this does not automatically mean that every search of the locker or desk is constitutional. Public-school officials and staff are still government actors for Fourth Amendment purposes, and the Fourth Amendment prohibits unreasonable searches. Just because there might not be as much of an expectation of privacy, that doesn't cancel out the 4th Amendment. If the search was unreasonable, students still remain protected, even if lockers or desks, according to the school's policy, are school property and may be inspected. Privacy and searchability are not the same thing. A student may have a reduced or very limited expectation of privacy in a school-owned locker or desk, while the legality of a particular search still depends on the reasonable suspicion for it, who it is conducted by, and other circumstances.

For example, a school policy might authorize routine inspections of lockers. That can affect whether a student can reasonably expect the locker itself to remain private, since if they are aware that lockers are searched, then the expectation of privacy is reduced. The important thing is that personal property stored inside the locker is a different story. A student's backpack, journal, notebook, or other personal belongings involve different expectations of privacy. The Supreme Court has recognized that students do not automatically lose all Fourth Amendment privacy interests simply because they bring personal belongings onto school grounds. Some school policies may state that lockers or desks remain under the school's control and may be inspected without individualized suspicion. As stated before, a school policy can significantly reduce a student's expectation of privacy in school-owned property, and in some jurisdictions, the law goes further and expressly provides that students have no expectation of privacy in a school-owned locker or its contents. Michigan is a particularly clear example: state law says a student using a school-district-owned locker is presumed to have no expectation of privacy in the locker or its contents, but it requires districts with lockers to adopt a locker-search policy and provide that policy to students and parents, which is a way policies balance conditionality. The Michigan statute also says that, during a search conducted under the policy, the student's privacy rights must be respected regarding items that are not illegal or against school policy.

Sometimes a policy might say a locker or desk is not private and is controlled by the school. The school may be able to search it at any time, even without individual reasonable suspicion, but that doesn't mean that a search like that can always be reasonable. The way the search is conducted and how invasive it is are what determine what makes it constitutional. For an ordinary individualized search of a student by a public school, there usually need to be reasonable grounds for the search at its beginning and whether the search was reasonably related in scope to the way it was done. The Court recognizes that there can be circumstances in which a search is conducted without individualized suspicion, although that does not make every suspicionless search constitutional. So, for a school-owned locker covered by a valid policy that substantially reduces the student's privacy interest, the analysis can be different from an ordinary search of a student's backpack or person. The school may have authority to conduct inspections under the applicable law and policy without first having individualized suspicion.



WHAT CAN BE SEARCHED



It does not necessarily have to be a random search, either. A general inspection policy could apply to every locker, while a random inspection could select lockers through a random process. The school does not automatically need a specific drug problem or other individualized circumstance merely because the search is suspicionless. The legality depends on what kind of search is being conducted, what law and policy authorize it, the privacy interest involved, the purpose and manner of the search, and the applicable constitutional standard. But a school cannot just make any search constitutional simply by writing “school property” in a policy. For example, a teacher could, depending on the applicable law, simply walk around the classroom and inspect desks without first having a suspicion that a particular student has done something wrong, and they would just be checking. That would be a suspicionless search/inspection. It doesn't have to be “random” in the technical sense. Checking every desk is suspicionless but not random. Selecting desks randomly is a random and suspicionless search. But if the teacher is checking a desk because the teacher specifically suspects someone, that becomes an individualized search. Based on how invasive a search is and the scope of it, whether there was an individualized search determines whether it was constitutional. But the teacher could also have a reason for searching, such as trying to solve a cheating issue, that might make a more intrusive search, such as a search of a notebook, more reasonable than randomly looking through it. In short, when it comes to lockers and desks, always check your school's policies and remember circumstances are more important than many might think.

The other side of school-owned items is computers or any other school-owned tech. Schools most likely establish acceptable-use, monitoring, and technology policies that explain how school-issued computers may be used and whether activity or information on those devices may be monitored or inspected. If a school clearly informs students that school-issued computers are subject to monitoring or inspection, that can reduce a student's reasonable expectation of privacy in the device and in certain activity conducted through it; this also depends on how the school policy is stated. The exact effect depends on the policy, applicable state law, and the circumstances. A school-owned computer is therefore not necessarily treated the same way as a student's personal computer.

Usually, since it's school-owned, a school can look at the physical computer, school accounts, school files, school email, school network browsing/activity on a school-managed system, and security or monitoring information. Let's say a teacher has specific information suggesting that a student violated a school rule using a school-issued computer. To know if the search is reasonable, it isn't just, “Does the school own the computer?” You need to look at the circumstances, like: What does the technology policy say? Was the student informed that the device could be monitored or inspected? What is the school looking for? Why does the school want to look (what rule was broken)? Is there individualized reasonable suspicion of a violation? How far does the search go? Does the official look at information reasonably connected to the suspected violation, or start examining unrelated personal material?

Suspicionless searches also apply to school-owned tech, especially when it comes to surveillance. Many times, the school system automatically records certain activity on every school-issued computer for security purposes. But a school needs a public policy that would state that school-issued devices and accounts may be monitored, inspected, or accessed by authorized school personnel. That's very important; stating that is what makes it a policy. That's very different from telling a student, “We're about to check your Chromebook,” immediately before every inspection, which is not required with reasonable individual suspicion and suspicionless searches of school-owned tech.

But let's say if you're using a school-owned computer, and if the school hadn't restricted it, you could sign into your personal account through that computer. Even though the school may own the computer, that doesn't mean everything inside the student's personal account is school property. In addition to that, using a personal account on a school-owned device can create a situation where ownership of the device and ownership of the information are different. A school's technology policy may address whether students are permitted to use personal accounts and whether activity on the device may be monitored. But keep in mind, even if the policy doesn't clearly say they can see your personal accounts, the fact that the notice makes it known that, since the computer is a school-owned device, school accounts can be managed on it reduces a student's expectation of privacy on the device. This doesn't mean a school looking through a student's personal account on a school computer is also a reasonable search, but it is a reason it could be.



WHAT CAN BE SEARCHED



Our best advice is to keep personal accounts to your personal devices since that protects your information more securely. And remember that school notices on tech can never provide carte blanche searches. Personal files saved on a school computer are similar. The computer belongs to the school, but the files belong to the student. There is a reasonable expectation of privacy, but since it's on a school-owned computer, that can be lessened. Students retain legitimate privacy interests in personal belongings and don't automatically surrender all privacy merely by bringing personal things into school. But digital information is complicated because the storage system, account, device, and content can all have different ownership/control relationships, and that affects the reasonability of a search. But let's say that you are using a personal device on a school network. The phone is a personal device; that phone is not school property, but the network is controlled by the school. The school may have policies governing use of its network and what websites can violate the school rules. Also, network administrators may have access to certain technical information needed to operate and secure the network. But that doesn't automatically mean: "The school owns the Wi-Fi, so it owns everything on your phone." The websites or network services that the device connects to through the school's network can still be subject to a reasonable expectation of privacy, though it might be reduced.

Let's say a school network records that a student's personal phone is connected to a website or online service that violates school rules. This gives school officials information or evidence of a rule violation. If they want to conduct an individualized search of the student's personal device, under ordinary circumstances, the search still needs to be justified at its inception by reasonable grounds and must remain reasonably related in scope. But evidence obtained from the school's network may contribute to reasonable suspicion, but it does not automatically give the school unlimited authority to search the student's personal phone, and students will remain protected under the 4th Amendment if that does happen in case the search was unreasonable. On the other hand, the contents of the personal device are very different. Seeing that a device connected to a particular service and seeing what websites were accessed is not the same as opening the phone and examining its private messages, photos, notes, files, etc. The student generally has a much stronger reasonable expectation of privacy, and a search can be considered unreasonable, especially in this case, depending on the circumstances.

Moving on to the next section, personally owned belongings. These carry a stronger expectation of privacy since they belong to and are controlled by the student. Students bring many personal items into school every day, including backpacks, purses, notebooks, journals, clothing, and other belongings. Things like backpacks and purses are definitely personal belongings too under the same strong reasonable suspicion because they are owned by the student, are used to carry personal belongings, and are capable of containing many unrelated private items. Personal ownership generally supports a student's stronger privacy interest, but the strength of that interest can vary depending on the item, how it is being used, whether it has been exposed to others, and the circumstances surrounding the search.

Items often include backpacks, purses or personal bags, notebooks, journals, personal phones, personal laptops, sketchbooks, clothing, personal items, personal containers, headphones or earbuds, and any personal information on your phone not being used through a school network search. Remember, though, these can all be searched even if you think it's a breach of your reasonable expectation of privacy, but whether it was a just search all depends on the circumstances. If you believe you have been wronged, it is always important to communicate the full story about your experience to protect yourself using the 4th Amendment.

Random searches and suspicionless searches can also be done on personal belongings. But the school has a specific, legally justified suspicionless-search program instead of just wanting to randomly check students' bags. Those two types of searches need to satisfy the applicable constitutional standard. Courts look at things such as how much reasonable expectation of privacy the students have in the belongings, how intrusive the search is, how important and immediate the school's safety/administrative interest is, whether there are safeguards limiting officials' discretion, and how the search is conducted. The Supreme Court's suspicionless-search cases use a fact-specific balancing approach, rather than simply saying schools may search personal belongings whenever they want. For example, the Eighth Circuit rejected a school district's policy of conducting full-scale, suspicionless searches of students' personal belongings, finding that the students retained a legitimate privacy interest in those belongings and that the school's evidence was insufficient to justify such an intrusion. Remember, though, this needs a special-needs exception.

Another personal search is the search of a student. The search generally must be justified by reasonable grounds at its beginning and must be reasonably related in scope to the circumstances that justified it. Firstly, a search of a student can include looking through pockets, asking a student to empty their pockets, searching clothing or outerwear, a pat-down, or a similar physical search. For a regular individualized search by a public-school official, they usually need reasonable grounds to believe that the search will uncover evidence of a violation of a school rule or the law. The suspicion should be connected to the student and the thing being sought.

Even with reasonable suspicion, if an official has reasonable grounds to believe a student has something in their pocket, that doesn't automatically mean they can conduct an unlimited search of the student's body or belongings. Not all searches of a student's person are equally intrusive. A search involving clothing, pockets, or a physical pat-down can raise different concerns from a search that exposes or examines a student's body. As the intrusion becomes more serious, the constitutional analysis and justification become more demanding since the student's expectation of privacy is a lot stronger and the scope might diminish, especially in searches that expose or examine bare areas of the body or require students to remove clothing. In *Safford Unified School District v. Redding*, the Supreme Court held that a highly intrusive search of a student's undergarments was unreasonable because the information supporting the search did not justify extending it that far.

The same and even more serious policy applies to random searches on a student's person that applied to their personal belongings. There must be a very strong special-needs exception to conduct this type of search, and it needs a lot of justification depending on how intrusive the search is. Because vehicle searches involve additional rules that are not very similar to searches of backpacks, lockers, or students themselves, they are beyond the primary scope of this edition and will not be covered.

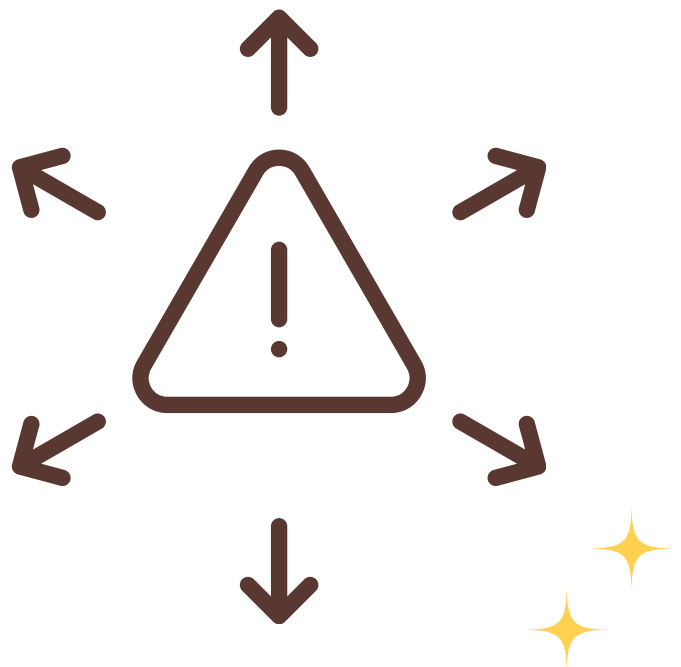
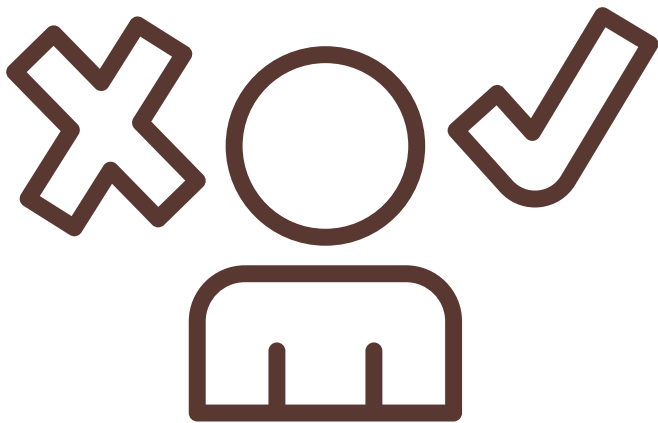




CONSEQUENCES



A search and the consequences that follow from it are separate legal questions. A school may conduct a search that is constitutional under the Fourth Amendment, yet the punishment or other consequence imposed afterward may still raise separate legal or policy questions. Likewise, the discovery of a violation does not automatically make the search itself constitutional. The legality of the search is generally evaluated based on the circumstances and information available when the search occurred, while the appropriateness of the resulting consequence depends on different rules, including the school's policies, district procedures, state law, and the circumstances of the student and violation. In other words: a reasonable search does not automatically make every consequence reasonable, and an unreasonable search does not become constitutional simply because it discovers a real violation. This is why the search itself and what happens afterward should be considered as two separate issues, and specific consequences and laws regarding those in school will not be covered in this edition.



NEW JERSEY V. T. L. O.

469 U.S. 325 (1985)

No. 83-712

Argued: March 28, 1984

Reargued: October 2, 1984

Decided: January 15, 1985

Certiorari to the Supreme Court of New Jersey



The Story at School

This case took place on March 7, 1980, at Piscataway High School in Middlesex County, N.J. This is arguably the most significant case regarding school searches since it established many standards and rules that are essential today. It all started during a regular school day in the 80s. Hallways were crowded, students hustling to class, and the slight chill of late winter coated the hallways. Everything was as normal as it could be in high school. But disaster struck when a teacher's shoes paced down the halls. Maybe they simply needed a break, tossing out the paper cup of coffee they had finished way too fast. The teacher found themselves in front of the door of a lavatory, nothing strange or out of the ordinary. Perhaps they needed to grab some worksheets to give to students who somehow just kept losing them. As the door swung open, the ordinary moment had fled. The teacher stood shocked, disappointed even, as they discovered two girls smoking in a lavatory. One of the two girls was the respondent, T. L. O., who at that time was just a 14-year-old high school freshman, until that moment when everything would change for her. Smoking in the lavatory was a violation of a school rule. The teacher crossed her arms, her eyes glossing over the scene in annoyance. Another rule broken. It seems that perfect students really don't exist.

The teacher took the two girls to the principal's office, where they met with Assistant Vice Principal Theodore Choplick. Mr. Choplick listened to the situation intently, though he wondered why the duty of being the Assistant Vice Principal sometimes had to be so difficult. He stood face-to-face with the girls, wishing, as anyone would, that they could have stayed out of trouble. But since they didn't, he just had to proceed with the most reasonable course of action: questioning. T. L. O.'s companion admitted that she had violated the rule. T. L. O., however, denied that she had been smoking in the lavatory and claimed that she did not smoke at all. Little did she know that statement was the determination for something much bigger. Mr. Choplick pinched the bridge of his nose as he looked down at T. L. O. He had quite the feeling, and since he was told by another teacher that she was smoking, and not only that, her friend admitted to it too, he decided to tell her to come into his private office and demanded to see her purse. Upon opening the purse, he found a pack of cigarettes. It seems that she actually did smoke. He took the pack of cigarettes, the cardboard box sitting not so innocently in his hands, and removed it from the purse. He held it before T. L. O. as he accused her of having lied to him when she had said she didn't smoke. But wait, there's more. As he reached into the purse for the cigarettes, Mr. Choplick, a good observer, also noticed a package of cigarette rolling papers. He almost let out a sigh. In his experience, possession of rolling papers by high school students was closely associated with the use of marihuana. And that was an extremely serious issue. He suspected that a closer examination of the purse might yield further evidence of drug use. Mr. Choplick proceeded to search the purse thoroughly. After all, if she had those rolling papers, he truly suspected that there could be drugs involved, and the best place to find them, since it's where he found her cigarettes, was her purse, which now was not just any regular purse.

In a regular high school, on a regular day in the 80s, it was about to become part of a staple case addressing student rights. In the end, the search revealed the purse had the following contents: a small amount of marihuana, a pipe, a number of empty plastic bags, a substantial quantity of money in one-dollar bills (considering it was the 1980s), an index card that appeared to be a list of students who owed T. L. O. money, and two letters that implicated T. L. O. in marihuana dealing. Quite the purse, I might say. The evidence of this search quickly intensified. Mr. Choplick notified T. L. O.'s mother and the police and turned the evidence of drug dealing over to the police. At the request of the police, T. L. O.'s mother took her daughter to police headquarters, where T. L. O. confessed that she had been selling marihuana at the high school. A prime example of how a simple observation of two girls smoking where they shouldn't be turned into, on the basis of the confession and the evidence seized by Mr. Choplick, delinquency charges against T. L. O. brought by the State in the Juvenile and Domestic Relations Court of Middlesex County. But T. L. O. took action to suppress the evidence found in her purse as well as her confession, which, she argued, was tainted by the allegedly unlawful search. In addition to that, the school had also given her a 3-day suspension from school for smoking cigarettes in a nonsmoking area and a 7-day suspension for possession of marihuana.

NEW JERSEY V. T. L. O.

469 U.S. 325 (1985)

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The Procedural History

First came the Juvenile Court. Although T. L. O. had wanted to suppress the evidence (block certain evidence), the Juvenile Court denied it. Although the court concluded that the Fourth Amendment did apply to searches carried out by school officials, it held that: “a school official may properly conduct a search of a student’s person if the official has a reasonable suspicion that a crime has been or is in the process of being committed, or reasonable cause to believe that the search is necessary to maintain school discipline or enforce school policies.” The court concluded that the search conducted by Mr. Choplick was reasonable. Firstly, the initial decision to open the purse was justified by Mr. Choplick’s well-founded suspicion that T. L. O. had violated the rule forbidding smoking in the lavatory, since he was told by another teacher that she had, and she was with another girl who had admitted to smoking. Once the purse was open, evidence of marihuana violations was in plain view, and Mr. Choplick was entitled to conduct a thorough search to determine the nature and extent of T. L. O.’s drug-related activities, since in his past experiences, rolling papers were often an indicator of the use of marihuana. On March 23, 1981, the court found T. L. O. to be a delinquent, and on January 8, 1982, sentenced her to a year’s probation. But then there was an appeal, which brings us to the New Jersey Appellate Division.

On appeal from the final judgment of the Juvenile Court, a divided Appellate Division confirmed the trial court’s finding that there had been no Fourth Amendment violation, but they disagreed on the delinquency ruling. They did not leave the delinquency adjudication in place. Instead, they vacated (canceled, voided, or set aside a juvenile court’s finding that a young person committed a delinquent act) the adjudication and sent the case back to the lower court to determine whether T. L. O. had knowingly and voluntarily waived her Fifth Amendment rights before confessing. But T. L. O. once again appealed and disagreed with the Appellate Division’s conclusion that the search did not violate her Fourth Amendment rights. That takes us to the Supreme Court of New Jersey.

The Supreme Court of New Jersey reversed the judgment of the Appellate Division and ordered the suppression of the evidence found in T. L. O.’s purse. This meant that the evidence found in the purse could not be used as evidence for conviction in the trial. The New Jersey Supreme Court agreed with the lower courts that the Fourth Amendment applies to searches conducted by school officials. But the court rejected the State of New Jersey’s argument that the exclusionary rule should not be employed to prevent the use in juvenile proceedings of evidence unlawfully seized by school officials. The court held simply that: “if an official search violates constitutional rights, the evidence is not admissible in criminal proceedings.” The court agreed that a warrantless search by a school official does not violate the Fourth Amendment so long as the official: “has reasonable grounds to believe that a student possesses evidence of illegal activity or activity that would interfere with school discipline and order.” However, the New Jersey Supreme Court disagreed with the Juvenile Court’s conclusion that the search of the purse was reasonable. This is because the majority believed several things. Firstly, the contents of T. L. O.’s purse had no bearing on the accusation against her because at Piscataway High School there was no rule against the possession of cigarettes, opposed to smoking them in the lavatory, which does violate school rules. A desire for evidence that would impeach T. L. O.’s claim that she did not smoke cigarettes could not justify the search because the state court explains a search cannot be justified to catch a student in a lie about a minor infraction when that infraction itself does not break school property rules, such as owning cigarettes. Finding them in her possession does not mean that she was smoking at the time in the lavatory. The court also stated Mr. Choplick had no reasonable grounds to suspect that T. L. O. had cigarettes in her purse because no one had given him specific information that there were cigarettes in the purse, only that she had been smoking in the lavatory, which he was told by another teacher. Even assuming that opening the purse was justified, the evidence of drug use that he saw inside did not justify the extensive “rummaging” through T. L. O.’s papers and effects that followed. But the State of New Jersey petitioned for certiorari, which means to ask a higher court, typically the Supreme Court, to review a decision made by a lower court. That takes us to the highlight of this case: the decision of the Supreme Court.

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The Supreme Court

Although the State had argued in the Supreme Court of New Jersey that the search of T. L. O.'s purse did not violate the Fourth Amendment, the petition for certiorari only addressed whether the exclusionary rule should operate as usual when it comes to juvenile delinquency proceedings involving evidence unlawfully seized by school officials without the involvement of law enforcement officers. When the case was first argued, the State agreed, for the sake of the case, that the standard made by the New Jersey Supreme Court for determining the legality of school searches was correct and that the court had correctly applied that standard. The State contended only that the use of the exclusionary rule wasn't proper when applying it to searches conducted by public authorities not primarily engaged in law enforcement. Although the Supreme Court originally granted certiorari to decide the issue of the appropriate remedy in juvenile court proceedings for unlawful school searches, it had doubts regarding its ability to decide that without the other circumstances and decisions made previously. Because of that, after hearing arguments on the legality of the search of T. L. O. The Supreme Court concluded that the search did not violate the Fourth Amendment.

In addition to that, the Court viewed the incident as involving two separate searches. The first search was for cigarettes. The teacher had reported that T. L. O. was smoking in the lavatory. Then T. L. O. denied smoking and claimed that she did not smoke at all. The Supreme Court concluded that this gave Mr. Choplick a reasonable suspicion that T. L. O. had cigarettes in her purse; therefore, opening the purse was reasonable. But remember, the New Jersey Supreme Court had reasoned that possession of cigarettes was not itself prohibited based on school rules, but the Supreme Court disagreed. Since the possession of cigarettes could support the report that T. L. O. had been smoking, it reduced the truth of her statement that she did not smoke and made it more probable that she had been smoking. Also, the Supreme Court rejected the argument that Mr. Choplick merely had what was called a "good hunch." This is because the teacher had reported that T. L. O. was smoking, and also, again, the Court reasoned that this gave Mr. Choplick's reason to suspect that she was carrying cigarettes with her. Also, the argument that he had no reason to check her purse since there was nothing that could support that the cigarettes could be in her purse was dismissed, since if she had cigarettes, her purse was an obvious place to find them. This was described by the Court as a "common-sense conclusion about human behavior." To add onto that, the Court also stated that Mr. Choplick didn't have to be certain that she had cigarettes in her purse for him to have reasonable suspicion. Because "sufficient probability, not certainty, is the touchstone of reasonableness under the Fourth Amendment." Furthermore, T. L. O. argued that even if Mr. Choplick could look inside her purse for cigarettes, he could not take the cigarettes out. Her argument was that, according to the school rules, cigarettes themselves were not prohibited, so the cigarettes were not subject to seizure or confiscation. The Supreme Court also rejected this argument. The Court reasoned that if Mr. Choplick could permissibly search the purse for cigarettes, it would not be reasonable to say that picking up the cigarettes after finding them was itself a constitutional violation. The Court concluded that "neither in opening the purse nor in reaching into it to remove the cigarettes did Mr. Choplick violate the Fourth Amendment."

Regarding the second search, it all began when Mr. Choplick noticed the package of rolling papers. Remember, in his experience, rolling papers were closely associated with marihuana use among high school students. This created a reasonable suspicion that T. L. O. was carrying marihuana as well as cigarettes. The Supreme Court therefore concluded that this suspicion justified further exploration of the purse. This search revealed a pipe, plastic bags commonly used to store marihuana, a small quantity of marihuana, and a substantial amount of money. These items strengthened the inference that T. L. O. was involved in marihuana trafficking, and the search eventually revealed the index card containing a list of "people who owe me money" and two letters. The Supreme Court concluded that the inference that T. L. O. was involved in marihuana trafficking was substantial enough to justify Mr. Choplick examining the letters to determine whether they contained further evidence. The Court concluded, "we cannot conclude that the search for marihuana was unreasonable in any respect." Because the search resulting in the discovery of evidence of marihuana dealing was reasonable, the Supreme Court held that the New Jersey Supreme Court's decision to exclude that evidence from T. L. O.'s juvenile delinquency proceedings on Fourth Amendment grounds was incorrect. In conclusion, the final result ended up being 94 N.J. 331, 463 A.2d 934, reversed (decisions made by lower courts).

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Separate justices opinions

Justice White: Majority Opinion.

He believed school officials can search students without a warrant or probable cause, but they need reasonable suspicion. Students still have Fourth Amendment privacy rights at school, but schools have special responsibilities to maintain order and safety. A search is constitutional when there are reasonable grounds to suspect the student violated a law or school rule, and the search is reasonably related to what they're looking for and isn't excessively intrusive. In T. L. O.'s case, the Court ultimately found the search reasonable. Basically, he believed schools get more flexibility than police, but they can't search students completely randomly.

Justice Powell: Concurring Opinion

He agrees with the result but emphasizes why schools are different from ordinary law enforcement. Teachers and administrators need authority to maintain discipline, and requiring probable cause for every school search would make it difficult for schools to respond quickly. Schools aren't primarily law-enforcement institutions; they're educational institutions, and schools need some flexibility because their job is to educate and maintain order, not investigate crimes like police.

Justice O'Connor: Concurring Opinion

O'Connor joined Powell's reasoning. She believed the Constitution should recognize the special relationship between students and school officials. School officials have a responsibility to protect students and maintain the educational environment, and the reasonable-suspicion standard gives schools enough authority while still protecting students' privacy. In conclusion, she believes students have rights, but schools have special responsibilities that justify a lower search standard.

Justice Blackmun: Concurring in the Judgment

He agrees that the search was constitutional, but he has a somewhat different explanation. He focuses heavily on balancing two interests: a student's interest, which is privacy and freedom from unreasonable searches, and the school's interest, which is safety, discipline, and maintaining an effective educational environment. He argues that the school context creates a "special need" that can justify searches without probable cause. He believes we have to balance students' privacy against the school's need to maintain safety and order.

Justice Brennan: Dissent

He believes the Court should have required probable cause, not merely reasonable suspicion, for this type of search. His biggest concerns were that the majority's "reasonableness" test is too vague and that teachers and administrators may not know when they are actually allowed to search. He puts emphasis on the fact that a student's privacy deserves strong constitutional protection, and in T. L. O.'s specific case, once the cigarettes were found, the search for evidence of smoking was over. Finding rolling papers wasn't enough to establish probable cause to keep searching for marijuana. He believes the school shouldn't have been allowed to keep searching T. L. O.'s purse based only on the rolling papers and that probable cause should have been required.

Justice Stevens: Concurring in Part / Dissenting in Part

Stevens goes even further in criticizing the majority than Brennan. He stated that the seriousness of the suspected violation should matter. He argues that there's a huge difference between searching someone because you suspect a minor school-rule violation versus drugs, weapons, violence, or serious disruption. He thinks the Court's standard is too broad because, technically, it could allow searches for very minor violations. For example, he worries that under the majority's approach, schools might search students over things like dress-code violations, being late, profanity, smoking, or being in a hallway without permission. He believes searches should be more justified when the suspected conduct involves crime, serious disruption, or danger. In conclusion, he believes that we should not treat a search for something minor like a search for something dangerous or criminal. The seriousness of the suspected violation should matter.

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The Supreme Court Holdings

Holding 1 — Fourth Amendment Applies to Public Schools

The Fourth Amendment's prohibition on unreasonable searches and seizures applies to searches conducted by public school officials. School officials are not exempt from the Fourth Amendment simply because of the special nature of their authority over schoolchildren. In carrying out searches and other functions pursuant to disciplinary policies mandated by state statutes, school officials act as representatives of the State, not merely as surrogates for the parents of students. Therefore, they cannot claim the parents' immunity (meaning that historically, school staff were considered an extension of a parent, so therefore, that wasn't the same consequence for searches because those teachers were like parents) from the Fourth Amendment's restrictions.

Holding 2 — Students Have Legitimate Expectations of Privacy

Schoolchildren have legitimate expectations of privacy. Students may find it necessary to carry with them a variety of legitimate, non-contraband items. There is no reason to conclude that they have necessarily waived all rights to privacy in such items merely by bringing them onto school grounds. However, the school environment requires a balance between student privacy and the school's legal obligation to maintain a safe environment in which learning can take place. Because of the importance of keeping this balance, it was made so that school officials do not need to obtain a warrant before searching a student or probable cause to believe that a student violated the law. Instead, the legality of a student search depends on the reasonableness, under all the circumstances, of the search.

Holding 3 — Two-Part Reasonableness Test

1. Was the search justified at its inception? A search of a student by a teacher or other school official will generally be justified at its inception when there are reasonable grounds for suspecting that the search will turn up evidence that the student has violated or is violating either the law or the rules of the school.

2. Was the search reasonably related in scope? The search must be reasonably related to the objectives of the search and not excessively intrusive regarding the student's age, the student's sex, and the manner in which the search was conducted

Holding 4 — Trivial Rules

The Court stated that it was unwilling to agree with the standard under which the legality of a search depends on a judge's evaluation of the relative importance of different school rules. The Court emphasized that maintaining discipline requires students to conform to standards on conduct prescribed by school authorities and should not be changed based on the opinions of a judge. The Court therefore generally said that that job belonged to school officials' judgment concerning the importance of school rules, so long as the rule itself did not violate another constitutional guarantee.

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Questions the Court did not decide

1. The Exclusionary Rule

The Supreme Court specifically stated that it was not deciding whether the exclusionary rule applies to evidence obtained through an unlawful school search. The Court explained that there are two separate questions when it came to that. First, was the evidence seized in violation of the Fourth Amendment? And is the exclusionary rule the appropriate way to address the consequences of that violation? Neither question is logically antecedent to the other. And since the Court found that T. L. O.'s search did not violate the Fourth Amendment, it did not need to decide whether the exclusionary rule would apply to an unlawful search by school authorities.

2. Lockers, Desks, and Other School Property

The Court did not decide whether a student has a legitimate expectation of privacy in lockers, desks, or other school property provided for storage. The Court also did not express an opinion on the standards governing searches of those areas by school officials or public authorities acting at the request of school officials.

3. Police Involvement in School Searches

The Court did not address police involvement in school searches. The Court stated, "We here consider only searches carried out by school authorities acting alone and on their own authority." The case did not present the question of the appropriate standard for searches conducted by school officials in conjunction with law enforcement agencies or at the behest of law enforcement agencies; therefore, it expressed no opinion on that question.

4. Searches Without Individualized Suspicion

The Court did not decide whether individualized suspicion is an essential element of the reasonableness standard adopted for searches by school authorities. The Court noted that in other contexts it had held that although "some quantum of individualized suspicion is usually a prerequisite to a constitutional search or seizure," the Fourth Amendment does not impose an absolute requirement of individualized suspicion in every circumstance. Because the search of T. L. O.'s purse was based upon individualized suspicion, the Court did not need to consider circumstances that might justify searches unsupported by individualized suspicion.



CONCLUSION



And one time before you go return to that hallway. The bell has already rung. Students are still moving toward lunch, lockers are still closing, conversations continue to overlap, and somewhere down the hall, someone is probably still trying to finish an assignment before the next period. But now, imagine that administrator is standing in front of you again. Your backpack is still hanging from your shoulder. And your still starving, wanting to go to lunch. And after all of that. The same question is still waiting:

“Can we take a look inside?”

After this maybe now, you know that the answer isn't simply yes or no. You know that public-school students do have Fourth Amendment rights. You know that schools have a responsibility to keep students safe and maintain order. And you know that, under *New Jersey v. T. L. O.*, school officials generally do not need a warrant or probable cause to search a student. Instead, the search must be reasonable under all the circumstances justified when it begins and reasonably related in scope to what school officials are looking for. That rule began with a 14-year-old freshman, a purse, and a search in a New Jersey high school. What was found inside that purse eventually made its way through the New Jersey courts and all the way to the Supreme Court of the United States. The Court's decision became one of the cases that continues to shape how we understand student privacy today. But *T. L. O.*'s story is not only about what was inside her purse. It is about what happens when authority meets privacy. It is about how the law tries to balance two things that can both matter at the same time: a school's responsibility to protect its students and a student's right to be treated as a person with constitutional protections. And that balance is still being tested. Right here right now, as the administrator eyes you, waiting. So, the next time you hear about a student being searched, a backpack being opened, a locker being inspected, or stand before the situation yourself. Don't be clueless. Don't do it because you think you may not have a choice and know when to accept you stand corrected.

✦ Knowing your rights
doesn't mean knowing
the answer but having
the ability to
understand the
question. ✦

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CITATIONS



Massp. <https://massp.com/2021/10/legal-searches-in-school-reasonable-suspicion-required/>. Accessed 18 Aug. 2026.

“Fourth Amendment.” LII / Legal Information Institute, https://www.law.cornell.edu/wex/fourth_amendment. Accessed 18 Aug. 2026.

“Unreasonable Search and Seizure.” LII / Legal Information Institute, https://www.law.cornell.edu/wex/unreasonable_search_and_seizure. Accessed 18 Aug. 2026.

“Search and Seizure in the Public Schools | Law | Research Starters | EBSCO Research.” EBSCO, <https://www.ebsco.com/>. Accessed 18 Aug. 2026.

“Schools Have a Duty to Keep Students Safe from Foreseeable Dangers.” Seattle Litigation Group - Seattle Law Firm, <https://www.seattlelitigation.com/blogs/schools-have-a-duty-to-keep-students-safe-from-foreseeable-dangers>. Accessed 18 Aug. 2026.

“The Right to Search Students.” ASCD, <https://www.ascd.org/el/articles/the-right-to-search-students>. Accessed 18 Aug. 2026.

“Amendment IV.” Constitution of the United States, Congress.gov, <https://constitution.congress.gov/constitution/amendment-4/>. Accessed 18 Aug. 2026.

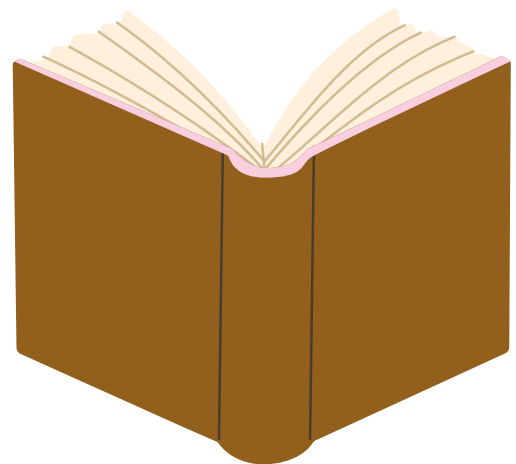
New Jersey Department of Law and Public Safety, Division of Criminal Justice. School Resource Officer Program: Appendix 1. State of New Jersey, <https://www.nj.gov/lps/dcj/school/app1.pdf>. Accessed 18 Aug. 2026.

Facts and Case Summary - New Jersey v. T.L.O. <https://www.uscourts.gov/about-federal-courts/educational-resources/educational-activities/fourth-amendment-activities/new-jersey-v-tlo/facts-and-case-summary-new-jersey-v-tlo>. Accessed 18 Aug. 2026.

School Searches and Seizure | Kids Legal. <https://kidslegal.org/school-searches-and-seizure>. Accessed 18 Aug. 2026.

“Know Your Rights: Student Searches & Investigations.” ACLU of Massachusetts, <https://www.aclum.org/know-your-rights/know-your-rights-student-searches-investigations/>. Accessed 18 Aug. 2026.

Nance, Jason P. “Random, Suspicionless Searches of Students’ Belongings: A Legal, Empirical, and Normative Analysis.” University of Colorado Law Review, vol. 84, 2013, pp. 368–430.



THE PEOPLE'S BRIEFS: SCHOOL SEARCHS

